



BREACH PORTAL REQUIRED INFORMATION

All information with an asterisk is required.

GENERAL Information Screen

Please supply the required general information for the breach.

* Report Type: What type of breach report are you filing?

- Initial Breach Report
- Addendum to Previous Report

If Addendum to Previous Report is selected:

* Do you have a valid breach tracking number? A breach tracking number would have been provided by OCR after January 1st, 2015. If you do not have a number please select 'No'.

- Yes
 - o Breach Tracking Number: Please supply your breach tracking number.
- No

CONTACT Information Screen

Please supply the required contact information for the breach.

- Are you a Covered Entity who experienced a breach, and are filing on behalf of your organization?
- Are you a Business Associate who experienced a breach, and are filing on behalf of a Covered Entity?
- Are you a Covered Entity filing because your Business Associate experienced a breach?

If “Are you a Covered Entity who experienced a breach, and are filing on behalf of your organization” was selected:

Covered Entity: Please provide the following information.

* Name of Covered Entity: (Name of Entity only (not of its representative), no abbreviations, no acronyms):

* Type of Covered Entity:

- Health Plan
- Healthcare Clearing House
- Healthcare Provider

* Street Address Line 1:

Street Address Line 2:

* City:

* State: -- Choose State --

* ZIP:

Covered Entity Point of Contact Information

* First Name:

* Last Name:

* Email:

* Phone Number: (Include area code):

Usage

- Home/Cell
- Work

If “Are you a Business Associate who experienced a breach, and are filing on behalf of a Covered Entity” was selected

Business Associate: Completion of this section is required if the breach occurred at or by a Business Associate or if you are filing on behalf of a Covered Entity.

* Name of Business Associate: (Name of Business Associate only (not of its representative), no abbreviations, no acronyms):

* Street Address Line 1:

Street Address Line 2:

* City:

* State: -- Choose State --

* ZIP:

Business Associate Point of Contact Information

* First Name:

* Last Name:

* Email:

* Phone Number: (Include area code):

* Usage

- Home/Cell
- Work

Enter the contact information for all Covered Entities on whose behalf you are filing.

Covered Entity 1

* Name of Covered Entity: (Name of Entity only (not of its representative), no abbreviations, no acronyms):

* Street Address Line 1:

Street Address Line 2:

* City:

* State: -- Choose State --

* ZIP:

Point of Contact Information

* First Name:

* Last Name:

* Email:

* Phone Number: (Include area code):

* Usage

- Home/Cell
- Work

* Type of Covered Entity:

- Health Plan
- Healthcare Clearing House
- Healthcare Provider

If “Are you a Covered Entity filing because your Business Associate experienced a breach” was selected:

Covered Entity: Please provide the following information.

* Name of Covered Entity: (Name of Entity only (not of its representative), no abbreviations, no acronyms):

* Type of Covered Entity:

- Health Plan
- Healthcare Clearing House
- Healthcare Provider

* Street Address Line 1:

Street Address Line 2:

* City:

* State: -- Choose State --

* ZIP:

Covered Entity Point of Contact Information

* First Name:

* Last Name:

* Email:

* Phone Number: (Include area code):

Usage

- Home/Cell
- Work

Business Associate: Completion of this section is required if the breach occurred at or by a Business Associate.

* Name of Business Associate: (Name of Business Associate only, no abbreviations, no acronyms):

* Street Address Line 1:

Street Address Line 2:

* City:

* State: -- Choose State --

* ZIP:

Business Associate Point of Contact Information

* First Name:

* Last Name:

* Email:

* Phone Number: (Include area code):

Phone Number

Usage

- Home/Cell
- Work

BREACH Information Screen

Breach Affecting: How many individuals are affected by the breach?

- 500 or More Individuals
- Fewer Than 500 Individuals

Breach Dates: Please provide the start and end date (if applicable) for the dates the breach occurred in.

* Breach Start Date:

* Breach End Date:

Discovery Dates: Please provide the start and end date (if applicable) for the dates the breach was discovered.

* Discovery Start Date:

* Discovery End Date:

* Approximate Number of Individuals Affected by the Breach:

* Type of Breach (drop-down instructions available in the portal):

- ☐ Hacking/IT Incident Help
- ☐ Improper Disposal Help
- ☐ Loss Help
- ☐ Theft Help
- ☐ Unauthorized Access/Disclosure Help

* Location of Breach:

- ☐ Desktop Computer
- ☐ Electronic Medical Record
- ☐ Email
- ☐ Laptop

- ☐ Network Server
- ☐ Other Portable Electronic Device
- ☐ Paper/Films
- ☐ Other

* Type of Protected Health Information Involved in Breach:

- ☐ Clinical
 - ☐ Diagnosis/Conditions
 - ☐ Lab Results
 - ☐ Medications
 - ☐ Other Treatment Information
- ☐ Demographic
 - ☐ Address/ZIP
 - ☐ Date of Birth
 - ☐ Driver's License
 - ☐ Name
 - ☐ SSN
 - ☐ Other Identifier
- ☐ Financial
 - ☐ Claims Information
 - ☐ Credit Card/Bank Acct #
 - ☐ Other Financial Information
- ☐ Other

* Type of Protected Health Information Involved in Breach (Other):

[4,000 characters limit]

* Brief Description of the Breach:

[4,000 characters limit]

* Safeguards in Place Prior to Breach:

- ☐ None
- ☐ Privacy Rule Safeguards (Training, Policies and Procedures, etc.)
- ☐ Security Rule Administrative Safeguards (Risk Analysis, Risk Management, etc.)

- ☐ Security Rule Physical Safeguards (Facility Access Controls, Workstation Security, etc.)
- ☐ Security Rule Technical Safeguards (Access Controls, Transmission Security, etc.)

NOTICE OF BREACH AND ACTIONS TAKEN Information Screen

Notice of Breach and Actions Taken: Please supply the required information about notices and actions.

* Individual Notice Provided Start Date:

* Individual Notice Provided Projected/Expected End Date:

Was Substitute Notice Required?

- Yes
 - ☐ Fewer than 10
 - ☐ 10 or more
- No

Was Media Notice Required?

- Yes
 - ☐ Select State(s) and/or Territories in which media notice was provided:
-- Choose State --
- No

* Actions Taken in Response to Breach:

- ☐ Adopted encryption technologies
- ☐ Changed password/strengthened password requirements
- ☐ Created a new/updated Security Rule Risk Management Plan
- ☐ Implemented new technical safeguards
- ☐ Implemented periodic technical and nontechnical evaluations
- ☐ Improved physical security
- ☐ Performed a new/updated Security Rule Risk Analysis
- ☐ Provided business associate with additional training on HIPAA requirements
- ☐ Provided individuals with free credit monitoring
- ☐ Revised business associate contracts
- ☐ Revised policies and procedures
- ☐ Sanctioned workforce members involved (including termination)

- ☐ Took steps to mitigate harm
- ☐ Trained or retrained workforce members
- ☐ Other
 - o * Describe Other Actions Taken: [4,000 characters limit]

ATTESTATION Information Screen

Please complete the Attestation form.

Under the Freedom of Information Act (5 U.S.C. §552) and HHS regulations at 45 C.F.R. Part 5, OCR may be required to release information provided in your breach notification. For breaches affecting more than 500 individuals, some of the information provided on this form will be made publicly available by posting on the HHS web site pursuant to § 13402(e)(4) of the Health Information Technology for Economic and Clinical Health (HITECH) Act (Pub. L. 111-5). Additionally, OCR will use this information, pursuant to § 13402(i) of the HITECH Act, to provide an annual report to Congress regarding the number and nature of breaches that are reported each year and the actions taken to respond to such breaches. OCR will make every effort, as permitted by law, to protect information that identifies individuals or that, if released, could constitute a clearly unwarranted invasion of personal privacy.

I attest, to the best of my knowledge, that the above information is accurate.

* Name:

Date: [system generated]



DEPARTMENT OF HEALTH AND HUMAN SERVICES
OFFICE FOR CIVIL RIGHTS (OCR)

Form Approved: OMB No. 0990-0269.
See OMB Statement on Reverse.



HEALTH INFORMATION PRIVACY COMPLAINT

YOUR FIRST NAME		YOUR LAST NAME	
HOME PHONE (Please include area code)		WORK PHONE (Please include area code)	
STREET ADDRESS		CITY	
STATE	ZIP	E-MAIL ADDRESS (If available)	

Are you filing this complaint for someone else? ☐ Yes ☐ No
If Yes, whose health information privacy rights do you believe were violated?

FIRST NAME LAST NAME

Who (or what agency or organization, e.g., provider, health plan) do you believe violated your (or someone else's) health information privacy rights or committed another violation of the Privacy Rule?

PERSON / AGENCY / ORGANIZATION

STREET ADDRESS		CITY
STATE	ZIP	PHONE (Please include area code)

When do you believe that the violation of health information privacy rights occurred?

LIST DATE(S)

Describe briefly what happened. How and why do you believe your (or someone else's) health information privacy rights were violated, or the privacy rule otherwise was violated? Please be as specific as possible. (Attach additional pages as needed)

Please sign and date this complaint. You do not need to sign if submitting this form by email because submission by email represents your signature.

SIGNATURE

DATE (mm/dd/yyyy)

Filing a complaint with OCR is voluntary. However, without the information requested above, OCR may be unable to proceed with your complaint. We collect this information under authority of the Privacy Rule issued pursuant to the Health Insurance Portability and Accountability Act of 1996. We will use the information you provide to determine if we have jurisdiction and, if so, how we will process your complaint. Information submitted on this form is treated confidentially and is protected under the provisions of the Privacy Act of 1974. Names or other identifying information about individuals are disclosed when it is necessary for investigation of possible health information privacy violations, for internal systems operations, or for routine uses, which include disclosure of information outside the Department for purposes associated with health information privacy compliance and as permitted by law. It is illegal for a covered entity to intimidate, threaten, coerce, discriminate or retaliate against you for filing this complaint or for taking any other action to enforce your rights under the Privacy Rule. You are not required to use this form. You also may write a letter or submit a complaint electronically with the same information. To submit an electronic complaint, go to OCR's Web site at: www.hhs.gov/ocr/privacy/hipaa/complaints/index.html. To submit a complaint using alternative methods, see reverse page (page 2 of the complaint form).

The remaining information on this form is optional. Failure to answer these voluntary questions will not affect OCR's decision to process your complaint.

Do you need special accommodations for OCR to communicate with you about this complaint? (Check all that apply)

- ☐ Braille ☐ Large Print ☐ Cassette tape ☐ Computer diskette ☐ Electronic mail ☐ TDD
- ☐ Sign language interpreter (specify language): _____
- ☐ Foreign language interpreter (specify language): _____ ☐ Other: _____

If we cannot reach you directly, is there someone we can contact to help us reach you?

FIRST NAME		LAST NAME	
HOME PHONE (Please include area code)		WORK PHONE (Please include area code)	
STREET ADDRESS		CITY	
STATE	ZIP	E-MAIL ADDRESS (If available)	

Have you filed your complaint anywhere else? If so, please provide the following. (Attach additional pages as needed)

PERSON / AGENCY / ORGANIZATION / COURT NAME(S)

DATE(S) FILED	CASE NUMBER(S) (If known)
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To help us better serve the public, please provide the following information for the person you believe had their health information privacy rights violated (you or the person on whose behalf you are filing).

ETHNICITY (select one) RACE (select one or more)

☐ Hispanic or Latino	☐ American Indian or Alaska Native	☐ Asian	☐ Native Hawaiian or Other Pacific Islander
☐ Not Hispanic or Latino	☐ Black or African American	☐ White	☐ Other (specify): _____

PRIMARY LANGUAGE SPOKEN (if other than English) _____

How did you learn about the Office for Civil Rights?

- ☐ HHS Website/Internet Search ☐ Family/Friend/Associate ☐ Religious/Community Org ☐ Lawyer/Legal Org ☐ Phone Directory ☐ Employer
- ☐ Fed/State/Local Gov ☐ Healthcare Provider/Health Plan ☐ Conference/OCR Brochure ☐ Other (specify): _____

To submit a complaint, please type or print, sign, and return completed complaint form package (including consent form) to the OCR Headquarters address below.

U.S. Department of Health and Human Services

Office for Civil Rights

Centralized Case Management Operations

200 Independence Ave., S.W.

Suite 515F, HHH Building

Washington, D.C. 20201

Customer Response Center: (800) 368-1019

Fax: (202) 619-3818

TDD: (800) 537-7697

Email: ocrmail@hhs.gov

Burden Statement

Public reporting burden for the collection of information on this complaint form is estimated to average 45 minutes per response, including the time for reviewing instructions, gathering the data needed and entering and reviewing the information on the completed complaint form. An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information unless it displays a valid control number. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: HHS/OS Reports Clearance Officer, Office of Information Resources Management, 200 Independence Ave. S.W., Room 531H, Washington, D.C. 20201. **Please do not mail this complaint form to this address.**



COMPLAINANT CONSENT FORM

The Department of Health and Human Services' (HHS) Office for Civil Rights (OCR) has the authority to collect and receive material and information about you, including personnel and medical records, which are relevant to its investigation of your complaint.

To investigate your complaint, OCR may need to reveal your identity or identifying information about you to persons at the entity or agency under investigation or to other persons, agencies, or entities.

The Privacy Act of 1974 protects certain federal records that contain personally identifiable information about you and, with your consent, allows OCR to use your name or other personal information, if necessary, to investigate your complaint.

Consent is voluntary, and it is not always needed in order to investigate your complaint; however, failure to give consent is likely to impede the investigation of your complaint and may result in the closure of your case.

Additionally, OCR may disclose information, including medical records and other personal information, which it has gathered during the course of its investigation in order to comply with a request under the Freedom of Information Act (FOIA) and may refer your complaint to another appropriate agency.

Under FOIA, OCR may be required to release information regarding the investigation of your complaint; however, we will make every effort, as permitted by law, to protect information that identifies individuals or that, if released, could constitute a clearly unwarranted invasion of personal privacy.

Please read and review the documents entitled, _____ and _____ for further information regarding how OCR may obtain, use, and disclose your information while investigating your complaint.

In order to expedite the investigation of your complaint if it is accepted by OCR, please read, sign, and return one copy of this consent form to OCR with your complaint. Please make one copy for your records.

- As a complainant, I understand that in the course of the investigation of my complaint it may become necessary for OCR to reveal my identity or identifying information about me to persons at the entity or agency under investigation or to other persons, agencies, or entities.



- I am also aware of the obligations of OCR to honor requests under the Freedom of Information Act (FOIA). I understand that it may be necessary for OCR to disclose information, including personally identifying information, which it has gathered as part of its investigation of my complaint.
- In addition, I understand that as a complainant I am covered by the Department of Health and Human Services' (HHS) regulations which protect any individual from being intimidated, threatened, coerced, retaliated against, or discriminated against because he/she has made a complaint, testified, assisted, or participated in any manner in any mediation, investigation, hearing, proceeding, or other part of HHS' investigation, conciliation, or enforcement process.

After reading the above information, please check ONLY ONE of the following boxes:

☐ **CONSENT:** I have read, understand, and agree to the above and give permission to OCR to reveal my identity or identifying information about me in my case file to persons at the entity or agency under investigation or to other relevant persons, agencies, or entities during any part of HHS' investigation, conciliation, or enforcement process.

☐ **CONSENT DENIED:** I have read and I understand the above and do not give permission to OCR to reveal my identity or identifying information about me. I understand that this denial of consent is likely to impede the investigation of my complaint and may result in closure of the investigation.

Signature: _____ Date: _____

**Please sign and date this complaint. You do not need to sign if submitting this form by email because submission by email represents your signature.*

Name (Please print): _____

Address: _____

Telephone Number: _____